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File No.: EXP202304374

RESOLUTION OF FILE OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 6, 2023, a complaint was filed with the Spanish Agency for Data Protection against ECOSCOOTING DELIVERY, S.L. with NIF B65874893 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they were the recipient of two packages consolidated into one, the delivery management of which was the responsibility of the complained party, and indicates that they were notified on March 3, 2023. They assert that it was delivered to a concierge of their Community of Owners, although there is no concierge in their building, so they state that they asked neighbors in the building, none of whom are recorded as having received the package, leading them to understand that it was delivered to a third party, with their personal data without their consent, exposing their personal data inappropriately.

The complainant states that they have been subject to a violation of personal data—including phone number, address, and email—as well as the loss of purchased products, as a result of inadequate service provided by the complained party as a transport company.

They indicate that they were waiting for the receipt of two unified orders that were to be delivered by the mentioned company and that they received a delivery notification to their email, indicating that the packages had been delivered to a "concierge of the building." They indicate that this statement immediately raised doubts, given that there is no concierge staff in the building in question.

They assert that, upon arriving home and checking the mailboxes, they did not find the packages, so they proceeded to ask the neighbors in the building, who confirmed that they had not received said products. However, a neighbor from their apartment reported that a delivery person attempted to make a delivery, but ultimately hung up the intercom, leaving the delivery incomplete and without providing further information about the whereabouts of the packages.

The complainant maintains that this situation has generated two main issues:

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The loss of the purchased products, which entails direct economic harm.

The possible exposure and improper use of their personal data, which constitutes a serious violation of fundamental rights protected by current regulations.

Therefore, in addition to highlighting such facts, they request financial compensation to cover both the loss of the products and the damage caused by the improper exposure of personal data.

- Along with the notification, the following documentation is provided: Screenshot of an email message sent by the complained party, where the following is communicated: "Hello A.A.A., Your order with reference ***REFERENCE.1 has been correctly delivered to the Concierge."

- Screenshot of an email sent by the complainant to "customersupport" through which they communicate: "I still do not know where my orders have been delivered, none of my neighbors have it, and nothing has been left in the mailboxes, I hope to have a response from you." Attached to the email is a screenshot showing tracking information for order ***REFERENCE.1, indicating for March 3 "Package delivered, Concierge." The image also shows, as the delivery address: ***ADDRESS.1."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of

October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on April 5, 2023, as recorded in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On June 6, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

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On 01/19/2024 (registration number REGAGE(...)), a response to the information request was received in which the responding party states:

“..... the delivery person who was supposed to deliver the package to Mr. A.A.A. is part of one of the fleets subcontracted by Ecoscooting Delivery for deliveries, specifically the company MAEGMANT SOLUCIONES SL.”

“Furthermore, Ecoscooting Delivery signs a mandatory compliance protocol with all external fleets, which establishes the measures that must be carried out by the delivery personnel to perform their work with due diligence.....”

“Checking from Ecoscooting the delivery receipt that we provide as Document number 4, it can be seen that in no case does it state that a concierge collected the package, but rather it lists the name and surname of the claimant, an ID number that the claimant does not recognize, and a scribble as a signature, confirming that a false delivery of the package occurred.”

“The false delivery is carried out in the following manner: the delivery person has a certain number of packages to deliver in a day, and since they often do not complete the deliveries, the packages they return to the warehouse are marked as delivered by inventing an ID number to simulate that all have been delivered. The next day, these packages should go out for delivery again along with the new packages assigned for that day, but some of those packages that should have already been delivered do not get redistributed and remain in the warehouse, so the user receives an email the previous day stating that their package has been delivered to an ID number they do not recognize (which is false), and if the delivery person does not take it out again for delivery the next day, the package remains in the warehouse of the subcontracted fleet.”

“From Ecoscooting, it can only be seen that the package has been delivered, without being able to have knowledge of the false delivery until receiving notice from the complainant that they have not received the packages that have been reported as delivered by MAEGMANT SOLUCIONES SL.”

“As can be seen in the explanation of the facts, the delivery person did not act diligently and marked the package as delivered when the package remains in the warehouse, so the data has never been provided to third parties, but the traceability of the same marks it as delivered for both Ecoscooting and the claimant.”

“..... prior to the delivery, an email is sent to the recipient to pre-authorize the delivery in the mailbox, concierge, or neighbor, in this way Ecoscooting has a record of this pre-authorization and the delivery person can leave the package with third parties (Document number 6).”

"Attached to the document (document number 6) is a template email addressed to the recipient so that they can authorize the delivery of the package in 'mailbox, concierge/porter, or neighbor'."

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"Likewise, the company has a Risk Analysis (provided as Document number 7), a Record of Processing Activities (provided as Document number 8), and has signed a subcontracting agreement with ***EMPRESA.1 as well as a subcontracting agreement with MAEGMANT SOLUCIONES SL (provided as Document number 1 and 2)."

Regarding the documentary accreditation of the technical and organizational measures adopted or modified to avoid, as much as possible, security incidents like the one that occurred, the respondent states:

"Since August 2023, Ecoscooting has begun implementing new security measures to ensure the confidentiality of user data is protected and for the delivery personnel of the fleets providing services to perform their work professionally: The pilot test implemented in Valencia in August, which modified the shipping label by omitting the users' mobile number (only leaving the last four digits of the phone), has started to be implemented in other cities across Spain and it is expected that during the year 2024 it will be consolidated throughout Spain... We attach as Document number 9 the new shipping label:

....."

"Likewise, fleets are being required to comply with the DPA (DATA PROCESSING AGREEMENT) signed with Ecoscooting as well as Annex 5 since they are responsible for ensuring that their delivery personnel have basic training in data protection and comply with the established protocols regarding data protection and confidentiality of data....."

The respondent attaches the contract (...) for the provision of services and the annex of the subcontracting agreement signed with the product supplier company (***EMPRESA.1), this document being in English and on page 1/56 it states (unofficial translation):

"1.- ***EMPRESA.1 is contracted by the online transaction platform of ***EMPRESA.2, other e-commerce platforms, or registered sellers and buyers on e-commerce platforms to provide them through a logistics information services platform developed and operated by ***EMPRESA.1 with optimized logistics service solutions and logistics information handling services and to cooperate with high-quality logistics service providers to provide specific logistics services;
2.- The logistics service provider possesses the licenses and qualifications required under the laws of the countries and regions in which it provides services, as well as value-added service resources in relation to the provision of International Logistics Services and other logistics services and is capable of providing the International Logistics Services specified herein;
3.- The logistics service provider seeks to cooperate with ***EMPRESA.1 as a service provider for ***EMPRESA.1, providing ***EMPRESA.1 with international logistics services, which has been contracted by transaction platforms."

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of electronic commerce, the seller or buyer registered on the electronic commerce transaction platforms;"

On page 10/56 of said document it is indicated (unofficial translation):

"The logistics service provider (the defendant) guarantees that it will implement the technical and organizational measures for data protection (i) against illegal or accidental destruction, and (ii) loss, alteration, unauthorized disclosure of data or access to data (Security Incident). Such measures must take into account the state of the art, the cost of implementation, and the nature, scope, context, and purpose of the processing, as well as the risk of varying the probability and severity of the rights and freedoms of natural persons."

In the section DATA PROCESSING AGREEMENT (DPA), page 33/56, it is indicated (unofficial translation):

"***COMPANY.1 is a data processor on behalf of its clients ("Controllers") (for example, online sellers and operators of electronic commerce platforms such as ***COMPANY.3) and is governed by certain restrictions and obligations regarding this processing. ***COMPANY.1 hereby delegates these obligations to ECOSCOOTING DELIVERY S.L. ("Subprocessor") (the defendant), which must comply

with data protection laws in relation to its obligations under this DPA.”

On page 50/56, in the section “DELIVERIES” there is a questionnaire addressed to ECOSCOOTING. In subsection 3 (“Delivery attempts”) the question appears (unofficial translation):

“(Do they deliver to neighbors or any other address not indicated by the customer?)”

To which the response is:

“(Only if the customer authorizes it)”

Thus confirming that ***COMPANY.1 was aware of these delivery procedures to third parties.

In the document “DOC_2_DPADData_Processing_Agreement_MAEGMANT_ECO.pdf” attached by the defendant, there is a “DATA PROCESSING AGREEMENT (DPA)” between the defendant and MAEGMANT SOLUCIONES SLU, from which the English translation is obtained:

“ECOSCOOTING is a data processor on behalf of its clients (“Controllers”) (for example, online sellers and operators of electronic commerce platforms such as ***COMPANY.3 or clients using ECOSCOOTING's logistics solutions) and is governed by certain restrictions and obligations regarding this processing. ECOSCOOTING hereby delegates these obligations to MAEGMANT SOLUCIONES S.L.U. (“Subprocessor”) which must comply with data protection laws in relation to its obligations under this DPA.

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1.- Description of the processing: The processing of personal data will be carried out for the purpose of providing the services and includes categories of personal data such as address, phone number, and name of the sender's contact, as well as address, phone number, and name of the recipient, logistics order number, tracking information, product information, declared value, to the extent necessary for the provision of the services.” (Unofficial translation).

In the same document (page 5/11) SERVICES is defined as:

“Means those defined in the agreement, in particular relevant Logistics Services.” (Unofficial translation).

In section D (SECURITY) of said document it indicates:

“The subprocessor will implement and maintain technical and organizational measures designed to prevent breaches of personal data. Such measures will take into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risk of varying the probability and severity of the rights and freedoms of natural persons.” (Unofficial translation)

Also attached (document 4 “DOC_4_(...)__771_A.pdf”) is the delivery receipt of the package with code ***REFERENCE.1. It states:

“RECIPIENT:

A.A.A.

***ADDRESS.1

TEL: + +***PHONE.1

RECEIVED:

Receiver: A.A.A.

Document: (...)

(...)

Signature”

The defendant attaches (document “doc_5_(...)__771_a.pdf”) a response from ***COMPANY.3 to the claimant indicating that a refund will be processed and attaches as document 7 document “DOC7_ANALISIS_RIESGOS_ECOSCOOTING.pdf”).

The defendant attaches document “doc_3_Anexo_5_ECOFLOTAS.pdf” related to “DELIVERY PROTOCOL” where a supposed code of conduct, confidentiality, and data protection is described that both the employees of the provider and the...

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Services as their subcontractors indicate that they are obliged to comply, where, among other things, it states in its section g):

“If the user receiving the package is not at home and it is not possible to contact them, a new delivery must be scheduled.

A package may NEVER be left with a third party without the authorization of the user who should receive it.”

In response dated 13/06/2024 and registration number REGAGE(...), the respondent party attaches a delivery protocol signed between them and MAEGMANT SOLUCIONES S.L.U.

In this document, the respondent party also indicates that the personal data that appeared on the outside of the package were: name and surname, postal address, and phone number of the claimant.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In the present case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, since the respondent party carries out, among other processes, the collection and use of the following personal data of individuals, such as: name and surname, postal address, and phone number.

Likewise, the respondent party carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR: “data controller” or “controller”: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing.

III

Principles Relating to Processing

Letter f) of Article 5.1 of the GDPR advocates:

“1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures (‘integrity and confidentiality’).”

The aforementioned principle of confidentiality entails that personal data must be processed in a manner that ensures appropriate security, including protection against unauthorized or unlawful processing, loss, destruction, or accidental damage, by applying appropriate technical and organizational measures.

For its part, the breach of this principle of confidentiality occurs when personal data are exposed, processed, or accessed in an unauthorized manner, due to inadequacy or lack of technical or

organizational measures of any kind. Consequently, for a breach of this principle to exist, it must be established that there has indeed been an unauthorized exposure, processing, or transfer of personal data. Therefore, mere suspicion is not sufficient; there must be concrete evidence that the data were unlawfully processed. Conversely, if it cannot be proven that the personal data have been unlawfully processed, it cannot be concluded that there has been a breach of the principle of confidentiality. In the present case, it has not been established that the package was delivered to any third party or unauthorized person. The respondent party provided a delivery receipt at the claimant's address, in which the claimant is listed as the recipient, although the signature or ID number of the "received" does not match theirs. Consequently, the delivery receipt does not establish that the delivery was made to a third party.

According to the respondent party, in this case, the delivery person did not act diligently and marked the package as delivered when it was still in storage. Therefore, it asserts that the data were never provided to third parties.

While this fact is not proven, neither is the contrary; that is, that an unauthorized third party received the package and, consequently, had access to the personal data of the claimant.

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In this regard, in order to initiate a sanctioning procedure, there must be indications or evidence that motivate it, taking into account the principle of the presumption of innocence that governs the administrative sanctioning procedure. Therefore, if such evidence does not exist, as is the case here, it is not possible to initiate a sanctioning procedure.

Administrative Sanctioning Law, due to its specificity, applies, with some nuances but without exceptions, the guiding principles of criminal law, resulting in the clear full applicability of the principle of the presumption of innocence. Not in vain, Article 53.2 b) of the LPACAP recognizes the right of presumed responsible parties to "the presumption of non-existence of administrative responsibility until proven otherwise."

Well, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence implies that "any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

In short, the application of the principle of the presumption of innocence prevents attributing an administrative infringement when there has not been obtained and verified the existence of incriminating evidence supporting the facts that motivate this attribution, as is the case here.

Regarding the compensation request made by the claiming party, it is appropriate to indicate that this authority does not have the competence to determine the existence of such compensation nor, if applicable, the amount or scope of it.

It is true that Article 82.1 of the GDPR grants individuals who have suffered damages as a result of an infringement of the aforementioned Regulation the right to receive compensation for such damages from the responsible party or the processor:

"Any person who has suffered material or immaterial damages as a result of an infringement of this Regulation shall have the right to receive compensation from the responsible party or the processor for the damages suffered."

However, this right must be exercised, if applicable, by filing a judicial action before the competent judicial bodies of the corresponding jurisdiction, which will depend, among other aspects, on the nature of the responsible party or processor that has been responsible for such infringement. In this regard, the sixth paragraph of the aforementioned Article 82 and the second paragraph of Article 79 of the GDPR state:

"Article 82.6

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Judicial actions in exercise of the right to compensation shall be brought before the competent courts in accordance with the law of the Member State indicated in Article 79, paragraph 2.

Article 79.2

Actions against a responsible party or processor shall be brought before the courts of the Member State in which the responsible party or processor has an establishment. Alternatively, such actions may be brought before the courts of the Member State in which the data subject has their habitual residence, unless the responsible party or processor is a public authority of a Member State acting in the exercise of its public powers."

For the reasons stated, without prejudice to the right of the claiming party to claim such compensation before the competent judicial authorities, this Authority cannot rule on the existence, scope, or determination of the amount, based on the arguments previously presented.

IV

Conclusion

Therefore, based on what has been indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to ECOSCOOTING DELIVERY, S.L. and to the claiming party. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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